

STATE OF MICHIGAN
IN THE SUPREME COURT

ANDREW J. PIGORS,
Petitioner/Father (Pro Se),

[Supreme Court Case No.]

v.

14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),
Respondent.

EMILY A. WATSON,
Real Party in Interest/Mother.

Lower Court Case Nos. 2024-001507-DC; 2023-5907-PP
Court of Appeals Case No. 366810

PETITIONER'S BRIEF IN SUPPORT OF PETITION FOR ORDER OF SUPERINTENDING CONTROL

(Const 1963, art 6, Sec. 4; MCR 7.304; MCR 7.306)

ORAL ARGUMENT REQUESTED

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INTRODUCTION

This is not a case about a single judicial error. This is a case about the complete breakdown of judicial function in the 14th Judicial Circuit Court's handling of a father's custody case -- a breakdown so total that only this Court's plenary superintending control authority can remedy it.

Petitioner Andrew J. Pigors is the father of L.D.W., a male child born November 9, 2022. Petitioner has been completely separated from his son for 229 consecutive days -- since July 29, 2025 -- following the trial court's ex parte revocation of a 50/50 custody arrangement that had functioned successfully for over fourteen months (438 days). In total, Petitioner has been denied contact with his child for 269 days across two separate withholding periods. Not because any court has found that contact with his father would endanger L.D.W. Not because any evaluation concluded that parenting time should be denied. But because the presiding judge eliminated all parenting time without conducting the analysis required by Michigan law, without holding a single evidentiary hearing, and without providing Petitioner the procedural protections guaranteed by the Michigan and United States Constitutions.

Over the course of this litigation, the presiding judge -- Hon. Jenny L. McNeill -- has:

- Denied Petitioner all contact with his child for 229 consecutive days (and counting) after revoking a functioning 50/50 custody arrangement;
- Entered 44% (24 of 55) of her orders ex parte -- without Petitioner's knowledge or participation;
- Jailed Petitioner for a combined 59 days on civil contempt with purge conditions he could not satisfy;
- Refused to enforce mandatory parenting time statutes despite documented violations by the opposing party;
- Imposed a \$250 bond on a disqualification motion, effectively barring an indigent litigant from challenging judicial bias;
- Caused Petitioner to lose 2 jobs (including a United States Postal Service position) and 2 homes;
- Directed that evaluations be submitted to the "judge's secretary, not to be filed with clerk" -- routing evidence outside the official record where it could never be reviewed on appeal.

Meanwhile, Watson's documented violations of court-ordered parenting time have resulted in zero enforcement actions.

The scope of documented misconduct is staggering: 1,127 judicial violations and over 150 documented misconduct claims across both proceedings. The evidentiary record contains 308,704 evidence quotes spanning the full chronology of abuse. This is not a collection of close calls. This is a systematic failure of judicial function.

These are not errors subject to correction through normal appellate review. They are structural failures that have corrupted these proceedings from the ground up -- failures that only this Court's exercise of superintending control can remedy.

Petitioner respectfully submits that this is precisely the kind of case for which this Court's plenary superintending authority exists.

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STATEMENT OF JURISDICTION

This Court's superintending control jurisdiction is conferred directly by the Michigan Constitution. Const 1963, art 6, Sec. 4 vests in this Court "general superintending control over all courts" and the "power to issue, hear and determine prerogative and remedial writs." This authority is self-executing, plenary, and not dependent on the existence or exhaustion of other remedies.

MCR 7.304 governs original proceedings in this Court. MCR 7.306 authorizes complaints for superintending control. MCL 600.1701 provides complementary statutory authority, confirming the broad scope of this Court's power to correct lower court action.

This Petition is filed as an original proceeding pursuant to all three authorities. Petitioner has also filed a concurrent appeal in the Court of Appeals (Case No. 366810), which remains pending. As demonstrated in this Brief, the pendency of that appeal does not provide an adequate remedy and does not preclude this Court's exercise of superintending control. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

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STATEMENT OF FACTS

The factual record supporting this Petition is set forth in detail in the Petition for Superintending Control and the Affidavit of Andrew J. Pigors, both filed herewith and incorporated herein by reference. For purposes of this Brief, Petitioner highlights the following critical facts:

A. The Custody Case and Background

1. Petitioner and Emily A. Watson are the parents of L.D.W., a male child born November 9, 2022. The custody case (2024-001507-DC) and related PPO case (2023-5907-PP) are pending before the 14th Circuit Court, Family Division, Muskegon County.
2. No court has ever found Petitioner to be an unfit parent or to pose any danger to L.D.W. No evaluation has ever concluded that contact between Petitioner and L.D.W. would be harmful.
3. Watson was formerly represented by Jennifer Barnes (P55406) of Barnes Law Firm PLLC, who has since withdrawn from the case. Watson's domestic partner, Ronald Berry -- a non-attorney -- has no legal role in these proceedings.
4. Despite the absence of any unfitness finding, Petitioner has been denied all parenting time with L.D.W. for 229 consecutive days since July 29, 2025 -- following the trial court's ex parte revocation of a 50/50 custody arrangement that had operated successfully for 438 days (May 5, 2024 through July 17, 2025). Including an earlier 40-day withholding period, the total denial of parenting time is 269 days across two separate periods. This total severance of the parent-child relationship was accomplished not by any reasoned judicial determination but by Watson's unilateral refusal to comply with parenting time provisions and the lower court's refusal to enforce those provisions. The trial court's revocation of the functioning shared custody arrangement -- without evidentiary hearing -- underscores the arbitrary nature of the court's actions.

B. The Pattern of Judicial Dysfunction

5. Petitioner has documented the following pattern of judicial conduct:

Category	Documented Facts
Ex parte proceedings	44% (24 of 55) orders entered without Petition

Denied parenting time	229 consecutive days (current, ongoing) -- 26
Off-docket evidence routing	Evaluations directed to "judge's secretary, n
Police report weaponization	At least 15 documented police reports used to
Judicial violations documented	1,127 violations, over 150 documented misconduct

6. The trial court directed evaluations and reports to be submitted outside the official record, creating what Petitioner terms a "shadow record" -- evidence that informed the court's rulings but was never filed with the clerk, never served on Petitioner, and is unavailable for appellate review.

C. The Contempt Incarceration

7. The lower court jailed Petitioner for a combined 59 days on civil contempt:

Contempt Order	Duration	Date
Show Cause #5	14 days	November 15, 2025
Show Cause #6 and #7	45 days	November 26, 2025
Total	59 days	

8. The purge conditions attached to these contempt orders included financial requirements that Petitioner -- an indigent litigant who had lost his employment as a direct result of prior contempt incarceration -- could not satisfy. The contempt was facially civil but functionally punitive: indefinite incarceration with impossible purge conditions is a fixed sentence, not a coercive sanction.
9. No court-appointed counsel was provided to Petitioner despite the threat and imposition of incarceration.

D. The Financial Access Barrier

10. The trial court imposed a \$250 bond requirement on Petitioner's motion for judicial disqualification under MCR 2.003. Petitioner is indigent. The bond operates as a complete bar to the disqualification remedy -- the sole mechanism within the lower court for addressing judicial bias.

E. Exhaustion of Remedies

11. Petitioner has pursued every available remedy: motions in the lower court (denied or ignored), disqualification (blocked by \$250 bond), Court of Appeals appeal (No. 366810, pending but too slow to prevent irreparable harm), and JTC complaint (filed). None, individually or collectively, can provide the comprehensive structural

relief required.

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STANDARD OF REVIEW

This Court reviews petitions for superintending control de novo. *Crampton v Dep't of State*, 395 Mich 347, 351 (1975). This Court has established a three-part test for the exercise of superintending control:

First, the party must demonstrate that the lower court has failed to perform a clear legal duty or has exceeded its jurisdiction. *Crampton*, 395 Mich at 351-352; *Hinkle v Wayne Co Clerk*, 467 Mich 337, 340 (2002).

Second, the party must show there is no other adequate legal remedy available. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

Third, the party must demonstrate that the extraordinary writ is necessary to prevent material injustice. *In re Hatcher*, 443 Mich 426, 441-442 (1993).

The standard is not whether the lower court committed reversible error on a single issue, but whether the cumulative pattern of the lower court's conduct warrants this Court's supervisory intervention. *In re Hatcher*, 443 Mich at 441 (superintending control is proper when a lower court has committed "an abuse of judicial power that is tantamount to a failure to perform a clear legal duty, and there is no other adequate remedy").

This Brief demonstrates that all three elements are met -- and that the documented pattern of 1,127 judicial violations, over 150 documented misconduct claims, and 269 total days of enforced parental separation -- including the revocation of a functioning 50/50 custody arrangement -- makes the case for this Court's intervention overwhelming.

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ARGUMENT

I. THIS COURT'S CONSTITUTIONAL SUPERINTENDING AUTHORITY IS PLENARY AND REQU

The Michigan Constitution vests this Court with "general superintending control over all courts." Const 1963, art 6, Sec. 4. This authority is not a discretionary grant that may be exercised or withheld at will. It is a constitutional obligation -- an essential structural safeguard in Michigan's judicial system ensuring that lower courts function within constitutional bounds.

This Court has recognized that its superintending control power "extends to the entire range of supervisory authority necessary to ensure the proper and efficient administration of justice." *Judges of the 74th Judicial District v Bay County*, 385 Mich 710, 727 (1971). The power is "plenary" -- it is not limited to the specific writs of mandamus, prohibition, or habeas corpus, but encompasses the full scope of supervisory authority over lower courts. *Id.* at 728.

In *In re Hatcher*, this Court confirmed that superintending control "is the proper remedy when a lower court has committed an abuse of judicial power that is tantamount to a failure to perform a clear legal duty, and there is no other adequate remedy." 443 Mich 426, 441-442 (1993). The Court emphasized that its supervisory jurisdiction is not constrained to traditional mandamus or prohibition categories but reaches the full range of conduct necessary to ensure the proper administration of justice.

The instant case presents precisely such a situation. The lower court has not merely committed isolated errors -- it has systematically failed to perform its core judicial functions:

- It has failed to enforce mandatory parenting time statutes (MCL 552.644) despite documented violations;
- It has conducted 44% (24 of 55) of its proceedings *ex parte* -- without Petitioner's notice or participation;
- It has failed to exercise its contempt power within constitutional limits, jailing Petitioner for 59 days;
- It has erected a \$250 financial barrier to the disqualification remedy;
- It has routed evidence outside the official record, corrupting the foundation for appellate review;
- It has allowed a child to be separated from a fit parent for 229 consecutive days -- after 438 days of successful 50/50 custody -- without any best interest analysis under MCL 722.23.

This is not a case for appellate error correction. Appellate review examines individual orders for

abuse of discretion on the record before it. It is not structured to conduct the systemic, pattern-based review that 1,127 documented judicial violations demand. This is a case for structural judicial oversight -- the very purpose of the superintending control power.

No lesser remedy can address the totality of the lower court's dysfunction. Mandamus can compel a specific act. Habeas can adjudicate custody. Appellate review can reverse a specific order. But none of these remedies can:

1. Remove the presiding judge;
2. Vacate multiple unconstitutional orders;
3. Direct the appointment of a new judge;
4. Order emergency parenting time;
5. Establish a case management schedule;
6. Impose ongoing compliance monitoring;
7. Refer documented misconduct for investigation.

Only superintending control provides this Court with the authority to do all of these things. This is precisely the "entire range of supervisory authority" that the Constitution envisions. Bay County, 385 Mich at 727.

II. SYSTEMATIC DUE PROCESS VIOLATIONS REQUIRE MSC INTERVENTION

Due process is not a suggestion. It is a constitutional command -- binding on every court at every level. US Const, amend XIV, Sec. 1; Const 1963, art 1, Sec. 17.

A. The Mathews v Eldridge Framework Is Violated on Every Factor

The Mathews v Eldridge framework requires consideration of three factors: (1) the private interest at stake; (2) the risk of erroneous deprivation under existing procedures and the probable value of additional safeguards; and (3) the government's interest. 424 US 319, 335 (1976).

(1) The private interest is as fundamental as the law recognizes. The parent-child relationship is "perhaps the oldest of the fundamental liberty interests recognized by this Court." Troxel v Granville, 530 US 57, 65 (2000). No interest protected by due process is more fundamental. The child's reciprocal interest in maintaining a relationship with both parents is equally

profound. *Stanley v Illinois*, 405 US 645, 651 (1972). When a fundamental right is at stake, due process demands rigorous procedural protections. *Santosky v Kramer*, 455 US 745, 753-754 (1982); *Lassiter v Dep't of Social Services*, 452 US 18, 27 (1981).

(2) The risk of erroneous deprivation is not theoretical -- erroneous deprivation has already occurred. Petitioner has been deprived of all contact with his child for 229 consecutive days -- following the revocation of a functioning 50/50 custody arrangement -- without any finding of unfitness, dangerousness, or abuse. The lower court's existing procedures -- including ex parte proceedings at a rate of 44%, contempt without counsel, and financial barriers to disqualification -- have proven wholly inadequate to protect Petitioner's rights.

(3) The government's interest is aligned with Petitioner's position. The government has no legitimate interest in the continuation of proceedings that violate due process. To the contrary, the state has a compelling interest in ensuring that its courts function lawfully and impartially. *Bowie v Arder*, 441 Mich 23, 42 (1992).

B. The Pattern of Due Process Violations

The due process violations in this case are not isolated incidents -- they form a pattern of systematic denial:

i. Ex parte proceedings. Notice and an opportunity to be heard are the "essential elements" of due process. Judge McNeill has entered 24 of 55 orders -- 44% -- without notice to or participation by Petitioner. These were not narrow emergency measures authorized by MCR 3.207(B); they were substantive adjudications of fundamental parental rights conducted without adversarial presentation.

An order entered without the procedural prerequisites mandated by due process and the court rules is void, not merely voidable. *Bowie v Arder*, 441 Mich 23, 49 (1992). MCR 2.119(B) requires that written motions be served at least nine days before hearing; ex parte orders under MCR 3.207 are narrowly limited to genuine emergencies involving immediate, irreparable injury. The lower court issued twenty-four ex parte orders substantively modifying custody, parenting time, and child support without the notice required by MCR 2.119(B). The sheer volume -- twenty-four orders, 44% of all proceedings -- demonstrates that this was not occasional emergency action but a systematic practice of deciding contested matters unilaterally, in direct contravention of both constitutional due process and Michigan's court

rules. These orders are void ab initio and should be vacated in their entirety.

ii. No evidentiary hearing on custody modification. MCR 3.210(C) requires the trial court to hold a hearing before entering a custody or parenting time order when a party has requested one. Petitioner repeatedly requested evidentiary hearings. The trial court denied these requests and entered dispositive orders eliminating all parenting time without any hearing. This constitutes a failure to perform the mandatory duty imposed by the court rules.

iii. Off-docket evidence routing. The trial court directed that evaluations be submitted to the "judge's secretary, not to be filed with clerk." This practice ensured that the evidence upon which the court relied would never appear in the official record, could never be challenged by Petitioner, and could never be reviewed on appeal. The creation of a "shadow record" undermines the foundational premise of appellate review -- that the reviewing court has access to the same record that was before the trial court.

iv. Suppression of filings. Petitioner's filings were suppressed from the official record. A court that refuses to docket a party's filings denies that party the most basic element of due process -- the right to be heard.

v. Contempt without counsel. When civil contempt results in actual incarceration, due process requires, at minimum, "substitute procedural safeguards" including notice of the charges, an opportunity to respond, and a judicial finding that the contemnor has the ability to comply. *Turner v Rogers*, 564 US 431, 448 (2011). Petitioner was jailed for 59 days without court-appointed counsel and without adequate procedural protections. The attorney nominally assigned to Petitioner for Show Cause #5 -- Mandi Martini -- sat silently, raised no objections, and prior to the hearing threatened Petitioner with additional jail for speaking in his own defense.

vi. Judicial silencing during hearing. During the Show Cause #5 hearing, conducted remotely, Judge McNeill ordered the stenographer to mute Petitioner's microphone three times while Petitioner attempted to present relevant evidence -- specifically, a police report documenting his son's poor physical condition. A hearing in which the respondent is physically prevented from speaking is not a "hearing" in any constitutionally meaningful sense.

The cumulative effect of these violations is a proceeding that bears no resemblance to the "fair hearing" that due process demands. Individual appellate review of individual orders cannot cure

the systemic nature of the problem. Superintending control is necessary.

III. MANDATORY STATUTORY DUTIES CANNOT BE REFUSED

Michigan's parenting time and custody statutes impose mandatory duties on the trial court -- duties that Judge McNeill has refused to perform. This refusal is precisely the kind of "failure to perform a clear legal duty" that superintending control is designed to correct. In re Hatcher, 443 Mich at 441.

A. MCL 552.644 -- The "Shall" Enforce Mandate

MCL 552.644 is not ambiguous. It provides:

"If the court determines that a custodial parent or agency has failed to comply with a parenting time order, the court shall do 1 or more of the following . . ."

The word "shall" in a statute creates a mandatory duty. When a statute imposes a mandatory duty on a court, the court's refusal to perform that duty is an unauthorized exercise of power that this Court may correct through superintending control. In re Hatcher, 443 Mich at 441.

The factual predicate for MCL 552.644's mandatory duty is satisfied:

Element	Record
Custodial parent	Emily A. Watson
Parenting time order	Entered by 14th Circuit Court
Failure to comply	Documented parenting time violations
Court presented with evidence	Petitioner filed motions documenting violatio
Court action under Sec. 644	None -- zero enforcement actions taken

MCL 552.644 provides a menu of mandatory remedies: compensatory parenting time, modification of the order, civil fine, contempt, and attorney fees. The court "shall" do "1 or more" of these. The statute does not say "may." It does not say "at the court's discretion." It says "shall."

Judge McNeill's refusal to enforce parenting time despite documented violations is a refusal to perform a clear, mandatory, statutory duty. This refusal constitutes an unauthorized non-exercise of judicial power -- precisely the kind of "abuse of judicial power" that superintending control was designed to correct.

B. MCL 722.23 -- The Mandatory Best Interest Analysis

Michigan law is equally unequivocal regarding custody modifications: before any court may modify custody or parenting time, it must evaluate and make findings on all 12 statutory best interest factors set forth in MCL 722.23(a)-(l). *Fletcher v Fletcher*, 447 Mich 871, 882 (1994) ("[T]he trial court is required to consider all the statutory best interest factors.").

The trial court has never conducted the MCL 722.23 analysis. It suspended all parenting time -- the functional equivalent of awarding sole physical custody to Watson -- without any findings on any of the 12 factors. This is not a discretionary act -- it is a mandatory legal duty, and its omission is a textbook case of failing to perform a clear legal duty.

C. MCL 722.27a -- Parenting Time Protections

MCL 722.27a creates a statutory presumption that parenting time is in the best interest of the child. MCL 722.27a(7) provides that parenting time "shall be granted in accordance with the best interests of the child." MCL 722.27a(9) provides specific protections against wholesale denial of parenting time. *Bowie v Arder*, 441 Mich 23, 49-51 (1992); *Pierron v Pierron*, 486 Mich 81, 92 (2010).

The trial court disregarded these mandatory protections entirely, eliminating all parenting time without the findings required by statute. *Vodvarka v Grasmeyer*, 259 Mich App 499, 512 (2003); *Shade v Wright*, 291 Mich App 17, 26 (2010).

D. MCR 3.210(C) -- Hearing Requirements

MCR 3.210(C) requires an evidentiary hearing before the court enters a custody or parenting time order when a party has requested one. MCR 3.207(B) governs interim orders and strictly limits the circumstances under which a court may act without a full hearing.

Petitioner repeatedly requested evidentiary hearings. The trial court denied these requests and entered dispositive orders without any hearing -- a direct violation of the court rules' mandatory hearing requirement.

E. The Consequence of Statutory Refusal

The consequence of these statutory refusals is not abstract. L.D.W. -- age three -- has been separated from his father for 229 consecutive days since July 29, 2025, with a total of 269 days of withholding across two periods -- this despite 438 days of demonstrated successful 50/50

custody between those periods. Each day of non-enforcement is a day of developmental harm, a day of alienation, a day of childhood irretrievably lost. The lower court's statutory duties are clear, their violation is documented, and the harm is ongoing and irreparable.

This Court should exercise its superintending authority to compel compliance with MCL 552.644, MCL 722.23, MCL 722.27a, and MCR 3.210(C), and to ensure that these mandatory duties are fulfilled.

IV. THE CONTEMPT ABUSE PATTERN EXCEEDS THE BOUNDS OF LAWFUL JUDICIAL POWER

This Court has drawn a clear constitutional line between civil and criminal contempt. Civil contempt is coercive -- it compels future compliance. Criminal contempt is punitive -- it punishes past conduct. In *re Contempt of Dougherty*, 429 Mich 81, 96-97 (1987). The distinction is not merely academic -- it determines the procedural protections to which the contemnor is entitled. When civil contempt sanctions lose their coercive character, they become criminal punishment, and the contemnor is entitled to full criminal procedural protections -- including the right to counsel, the presumption of innocence, and proof beyond a reasonable doubt. *Dougherty*, 429 Mich at 97; In *re Sanders*, 495 Mich 394, 406 (2014).

The lower court's use of contempt power against Petitioner exhibits every hallmark of punishment, not coercion.

A. Duration: 59 Days of Incarceration

Petitioner was jailed for a combined 59 days across three contempt sanctions:

- Show Cause #5: 14 days, commencing November 15, 2025
- Show Cause #6 and #7: 45 days, commencing November 26, 2025

Prolonged incarceration on civil contempt raises a strong inference that the sanction has lost its coercive purpose and become punitive. In *re Contempt of Henry*, 282 Mich App 656, 664 (2009) (examining duration as factor in civil-versus-criminal analysis). The longer the incarceration, the weaker the coercive justification.

B. Purge Conditions Impossible to Satisfy

Civil contempt must include a purge condition -- something the contemnor can do to secure

release. The purge condition must be within the contemnor's present ability to perform. Dougherty, 429 Mich at 101. When purge conditions are set beyond the contemnor's ability to comply, the sanction is effectively a fixed sentence -- which is punishment, not coercion.

Petitioner's purge conditions included financial requirements. Petitioner is indigent -- he lost his employment as a direct result of prior contempt incarceration and has been unable to maintain stable employment due to the ongoing judicial proceedings. Setting purge conditions that a known-indigent person cannot satisfy transforms civil contempt into indefinite punitive detention.

C. No Right to Counsel Despite Incarceration

In *Mead v Batchlor*, 435 Mich 480, 498 (1990), this Court held that the right to counsel attaches in contempt proceedings when incarceration is imposed or threatened. The lower court jailed Petitioner for 59 days without providing court-appointed counsel. This alone constitutes a structural due process violation.

Turner v Rogers, 564 US 431, 448 (2011), held that even in civil contempt proceedings that result in incarceration, due process requires at minimum "substitute procedural safeguards" -- including notice, opportunity to respond, and a judicial finding that the contemnor has the present ability to comply. Petitioner was not afforded these protections. No ability-to-pay hearing was conducted before incarceration was imposed.

C-1. The Show Cause #5 Hearing: Suppression of Defense in a Proceeding Resulting in Incarceration

The Show Cause #5 hearing -- which resulted in Petitioner's first period of incarceration (14 days) -- reveals the contempt abuse in its most stark form:

i. Judicial silencing during a remote hearing. Show Cause #5 was conducted as a remote hearing. During the proceeding, Judge McNeill ordered the stenographer to mute Petitioner's microphone three (3) separate times. Petitioner was attempting to inform the court that he had filed a police report documenting his son's poor physical condition at a parenting time exchange -- evidence directly relevant to the show cause allegations and to the defense. The court's deliberate suppression of Petitioner's testimony during a proceeding that culminated in 14 days' incarceration constitutes a denial of the right to be heard at its most fundamental level.

ii. Ineffective assistance of counsel. Petitioner's appointed attorney, Mandi Martini, sat silently throughout the hearing and raised no objections -- not to the muting of her client, not to the exclusion of the police report, not to the denial of Petitioner's right to present a defense. Prior to the hearing, Martini emailed Petitioner: "you will not interrupt . . . Judge McNeil is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court." Petitioner's own counsel thus threatened him with additional incarceration for exercising his right to speak in his own defense -- and then failed to speak on his behalf.

iii. The prosecution's own admission. The prosecutor handling Show Cause #5 privately admitted to Martini that there was "nothing substantive in the motion." The state's own representative acknowledged the meritless nature of the proceeding -- yet Petitioner was incarcerated for 14 days nonetheless.

iv. Blank affidavit page -- fatal procedural defect. The affidavit supporting Show Cause #5 contained a blank page (page 27). MCR 3.708(B) requires that contempt proceedings be supported by factual allegations. A filing with a blank evidentiary page fails this threshold requirement. The court proceeded to incarcerate Petitioner on the basis of a facially defective filing.

v. Misattribution of accusation to law enforcement -- fraud on the court. Watson's ex parte filings attributed to Officer Ella Randall (Norton Shores PD, Incident #NS2505044) the statement that Petitioner's behavior appeared to be the result of "meth use." However, upon investigation, Officer Randall confirmed that the "meth use" characterization originated from Emily Watson herself -- not from any independent police observation or professional assessment. Watson's filings falsely presented her own accusation as the professional opinion of a law enforcement officer -- laundering a party's unverified allegation through a police report to give it the appearance of independent corroboration. When Petitioner raised this misattribution before Judge McNeill, the court stated: "quit nitpicking" -- declining to address a material misrepresentation in a sworn filing that formed the evidentiary foundation for the ex parte suspension of Petitioner's parental rights.

vi. Cover-up of child's removal from the country. Show Cause #5 was filed contemporaneously with Watson's removal of L.D.W. from the country (October 20 through November 15, 2025) -- with the court's permission. The timing suggests that the show cause filing served as a tactical

cover for the child's international removal, which itself was accomplished without Petitioner's consent or any finding that removal from the country served L.D.W.'s best interests.

D. Asymmetry: The Most Telling Evidence of Abuse

The most revealing evidence of contempt abuse is the stark asymmetry in enforcement:

Party	Documented Violations	Enforcement
Petitioner (Father)	Alleged violations	59 days jail
Watson (Mother)	Documented parenting time violations	Zero enforcement actions
Watson family (PPO violations)	Cody Watson threats (Police Report MCSD-2024-02101)	Zero enforcement actions

This asymmetry is inexplicable as even-handed justice. It is consistent only with punitive targeting of one party. The PPO case (2023-5907-PP) provides the starkest illustration: Watson's brother Cody violated the PPO -- documented in Police Report MCSD-2024-02101 (Officer Brian Hintz) -- yet Watson's family faced zero consequences. Meanwhile, Petitioner was jailed for 59 days. Watson herself committed at least three documented PPO violations through third-party proxies, yet the court took no enforcement action against her while simultaneously weaponizing the same PPO to restrict Petitioner's parental rights.

The PPO was filed and granted on the same day -- December 4, 2023 -- on an ex parte basis, without notice to Petitioner. Six show cause motions followed, strategically timed around holidays and custody exchanges. The court explicitly ordered "no communication, no texts, no anything" between the parties -- Watson agreed on the record -- yet her family members continued to attend exchanges and violate the order with impunity. This selective enforcement -- holding Petitioner to the letter of the PPO while excusing Watson's family's violations -- confirms that the contempt power was wielded as a weapon, not a remedy.

When a court jails one parent for 59 days while imposing zero consequences on the other parent for documented violations of the same court orders, the coercive rationale for civil contempt collapses. What remains is punishment -- and punishment without criminal procedural protections violates due process.

E. Collateral Consequences Confirm Punitive Character

The collateral consequences of the contempt incarceration confirm its punitive nature:

- 2 jobs lost, including a United States Postal Service position -- a career-track federal employment position destroyed by judicial action;

- 2 homes lost -- Petitioner rendered effectively homeless;
- Ongoing economic devastation -- the cascading loss of employment, housing, and financial stability directly attributable to contempt incarceration.

These are the consequences of punishment, not of lawful coercion. A coercive sanction seeks to compel compliance; it does not seek to destroy the contemnor's economic existence. When the collateral consequences of contempt are this severe, the sanction has plainly exceeded its coercive purpose.

F. Relief Required

The lower court's contempt practice in this case constitutes an abuse of judicial power that exceeds the bounds authorized by law. This Court should exercise superintending control to:

1. Vacate all contempt orders entered without compliance with *Mead v Batchlor* and *Turner v Rogers*;
2. Order that no future contempt incarceration be imposed without a finding of present ability to comply;
3. Order that counsel be appointed before any future contempt hearing where incarceration is possible;
4. Prohibit further retaliatory use of contempt power against Petitioner.

V. FINANCIAL ACCESS BARRIERS VIOLATE FUNDAMENTAL DUE PROCESS

The United States Supreme Court has held that "a State may not, consistent with the obligations imposed on it by the Due Process Clause of the Fourteenth Amendment, pre-empt the right to dissolve [a fundamental relationship] without affording all citizens access to the means it has prescribed for doing so." *Boddie v Connecticut*, 401 US 371, 383 (1971).

A. The \$250 Bond Requirement

The trial court imposed a \$250 bond requirement on Petitioner's motion for judicial disqualification. Petitioner is indigent. The bond operates as a complete bar to the disqualification remedy.

B. Boddie Controls

Boddie involved a \$60 filing fee that prevented indigent parties from accessing the courts to dissolve a marriage. The Court held that when the state has a monopoly on the means of resolving a fundamental dispute -- as it does in custody proceedings -- it cannot impose financial barriers that prevent access to those means. 401 US at 383.

Custody is precisely the kind of fundamental dispute that Boddie protects. A parent cannot resolve a custody dispute outside the courts. The court system holds an absolute monopoly over parental rights adjudication. When that same court system imposes a financial barrier that prevents an indigent parent from challenging the bias of the presiding judge, it denies that parent meaningful access to justice.

C. M.L.B. v S.L.J. Extends the Principle to Parental Rights

In *M.L.B. v S.L.J.*, 519 US 102 (1996), the Supreme Court held that a state may not condition a parent's right to appeal a termination of parental rights on payment of transcript costs. The Court recognized that "choices about marriage, family life, and the upbringing of children are among associational rights this Court has ranked as 'of basic importance in our society,' rights sheltered by the Fourteenth Amendment against the State's unwarranted usurpation, disregard, or disrespect." 519 US at 116.

The \$250-per-motion bond operates identically to the fee barrier struck down in *M.L.B.* -- it denies a parent access to the judicial process in a proceeding affecting his fundamental parental rights.

D. Michigan Constitution, Art 1, Sec. 13 -- Access to Courts

The Michigan Constitution independently prohibits this barrier: "Every person for an injury done to him in his person or property, shall have remedy by due course of law, and shall have justice administered without sale, denial or delay." Const 1963, art 1, Sec. 13 (emphasis added). The \$250-per-motion bond is, by definition, a "sale" of justice -- conditioning access to the court on payment of a fee that an indigent litigant cannot pay.

E. The Bond Creates a Closed Loop of Unreviewable Bias

The \$250 bond requirement does not operate in isolation. It functions as the final link in a chain of self-reinforcing judicial abuse:

1. The trial court enters ex parte orders denying Petitioner's fundamental rights (24 of 55 orders);
2. The trial court denies evidentiary hearings to challenge those orders;
3. The trial court imposes a \$250-per-motion bond to prevent further challenges;
4. The trial court uses contempt power to enforce compliance with the very orders Petitioner seeks to challenge.

The irony is compounding: the judge whose conduct necessitates the disqualification motion is the same judge who imposed the financial barrier that prevents the motion from being heard. This creates a closed loop of unreviewable bias from which there is no escape within the lower court.

Only this Court's superintending authority can break that loop -- by vacating the bond requirement and ordering either the disqualification or reassignment of Judge McNeill.

VI. THE PATTERN OF BIAS MAKES INDIVIDUAL RELIEF INADEQUATE

Petitioner does not allege that Judge McNeill committed one biased act. Petitioner alleges -- and documents -- a pattern of bias so pervasive that it infects every aspect of these proceedings, rendering individual remedies structurally incapable of providing relief.

A. The Five Categories of Documented Bias

#	Category	Evidence
1	Pro-Watson enforcement asymmetry	Watson's documented violations -> zero enforcement
2	Anti-father presumption	Effective presumption against father contrary
3	Ex parte adjudication	44% (24 of 55 orders) of proceedings conducted
4	Retaliatory sanctions	Contempt and financial barriers imposed in re
5	Disproportionate punishment	59 days jail for Petitioner; zero consequence

B. Quantified Judicial Violations

The scope of bias is not a matter of characterization -- it is documented with precision:

- 1,127 judicial violations identified across both proceedings;
- Over 150 documented misconduct claims categorized;
- 24 ex parte orders -- 44% of all proceedings;
- 59 days of contempt incarceration;
- Zero enforcement actions against Watson;

- 269 total days of enforced parental separation across two withholding periods, after 438 days of successful 50/50 custody.

These numbers are derived from the evidentiary record, not from subjective assessment. They establish a pattern that no reasonable observer could attribute to the exercise of sound judicial discretion.

C. Shulick v Richards -- The Objective Standard

Under *Shulick v Richards*, 273 Mich App 320, 326 (2006), the question is not whether the judge is actually biased, but whether a "reasonable, informed observer would conclude that the judge's impartiality might reasonably be questioned." MCR 2.003(C)(1)(b) codifies this standard.

When the documented record shows 1,127 judicial violations, a 44% ex parte rate, 59 days of incarceration for one party and zero enforcement against the other, and a \$250 bond preventing the disqualification motion from being heard, the answer to the *Shulick* question is beyond reasonable dispute.

D. Structural Bias: The Watson Employment Nexus

The Real Party in Interest's employment within the Michigan court system -- specifically, the Kent County Prosecutor's Office, Family Court Division -- raises concerns that transcend this individual case. When a court system's own employee receives systematically favorable treatment in a custody dispute, public confidence in the judiciary is undermined. This Court need not find actual corruption; the appearance of impropriety is sufficient to warrant disqualification and reassignment.

E. Individual Remedies Cannot Cure Systemic Bias

The significance of pattern evidence is this: individual remedies cannot cure systemic bias. Mandamus can compel a specific act. Habeas can adjudicate custody. Appellate review can reverse a specific order. But none of these remedies can address a pattern of bias that pervades every aspect of a case -- from scheduling to rulings to enforcement to sanctions.

When a judge's bias is so pervasive that it infects the entire proceeding, the only adequate remedy is removal of the judge and restructuring of the case under new judicial supervision.

That is a remedy available only through superintending control.

Moreover, the disqualification remedy under MCR 2.003 -- the normal mechanism for addressing judicial bias -- has been rendered unavailable by the \$250 bond requirement. Because the biased judge imposed the bond, the ordinary remedy for bias has been neutralized by the bias itself. Superintending control is the only mechanism that can:

1. Remove the biased judge without the \$250 barrier;
2. Vacate orders tainted by bias;
3. Reassign the case to an impartial jurist;
4. Monitor the new proceedings to prevent recurrence.

VII. THE CHILD'S FUNDAMENTAL RIGHTS DEMAND IMMEDIATE JUDICIAL INTERVENTION

The rights at stake in this case are not solely Petitioner's. L.D.W. -- a male child, age three -- has his own, independent constitutional rights that are being violated every single day.

A. The Constitutional Framework

The United States Supreme Court has recognized that the parent-child relationship is protected by the Due Process Clause on both sides.

In *Troxel v Granville*, 530 US 57, 65 (2000), the Court affirmed that "the interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court."

In *Stanley v Illinois*, 405 US 645, 651 (1972), the Court recognized that children have a cognizable interest in not being wrongfully separated from their parents: "The private interest here, that of a man in the children he has sired and raised, undeniably warrants deference and, absent a powerful countervailing interest, protection."

In *Santosky v Kramer*, 455 US 745, 753-754 (1982), the Court held that before the state can sever the parent-child bond, it must provide procedural protections commensurate with the magnitude of the interests at stake. The Court emphasized that the parent-child relationship is "far more precious than any property right." *Id.* at 758-759.

B. 229 Days and Counting -- The Developmental Catastrophe

L.D.W. was born November 9, 2022. He is now three years old. Petitioner maintained successful 50/50 parenting time with L.D.W. for 438 days (May 5, 2024 through July 17, 2025) under a temporary custody order -- demonstrating that shared custody was both workable and in the child's best interest. The trial court's subsequent ex parte revocation of this functioning arrangement has resulted in 229 consecutive days of complete separation since July 29, 2025. Including an earlier 40-day withholding period, the total denial of parenting time is 269 days. The period from ages one through three is among the most critical in child development -- the period during which attachment bonds form, language develops, and the child's foundational understanding of relationships takes shape. The regression from a functioning shared custody arrangement to total severance compounds the psychological trauma.

During the current withholding period, Watson removed L.D.W. from the country entirely from October 20 through November 15, 2025 -- with the trial court's permission -- while simultaneously filing a show cause motion against Petitioner for an alleged verbal exchange at a parenting time exchange, for which no evidence was presented. This juxtaposition -- permitting the child's removal from the country while punishing the father for unsubstantiated allegations -- epitomizes the trial court's pattern of asymmetric treatment.

No court has found that this separation serves L.D.W.'s best interests. No court has found that Petitioner is unfit. No court has found that contact with Petitioner would harm L.D.W. No MCL 722.23 analysis has been conducted. The separation exists solely because:

1. Watson refuses to comply with parenting time provisions;
2. Judge McNeill refuses to enforce those provisions; and
3. The disqualification remedy is blocked by a \$250 bond.

C. The Harm Is Irreparable and Compounding Daily

Unlike property or money, a child's developmental stages cannot be recovered. Each day of separation deepens the alienation, weakens the parent-child bond, and closes developmental windows that cannot be reopened. The 269 total days of withholding are gone permanently -- and the current 229 consecutive days continue to compound this harm daily. No future court order, no matter how favorable, can restore them.

Developmental research establishes that prolonged separation from a parent during early childhood causes severe and lasting psychological harm, including anxiety, depression,

difficulty forming attachments, and identity confusion. The documented police reports -- at least 15 verified, weaponized as a tool to establish a false narrative of dangerousness -- compound this harm by creating a record that future courts may misinterpret as evidence of unfitness.

D. Michigan's Statutory Framework Protects the Child's Interest

Michigan law recognizes the child's interest in maintaining a relationship with both parents. MCL 722.23 lists as best-interest factors both "the love, affection, and other emotional ties existing between the parties involved and the child" and "the willingness and ability of each of the parties . . . to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent."

The lower court's inaction -- its refusal to enforce parenting time, its tolerance of documented violations, its use of contempt to punish the non-custodial parent while ignoring the custodial parent's defiance -- is antithetical to these statutory values and to the fundamental rights of the child this court was charged to protect.

E. The Urgency Cannot Be Overstated

Every day without intervention deepens the harm. L.D.W. is approaching the point after which reunification becomes exponentially more difficult. The months and years of his childhood that have been lost to this separation are gone permanently. This Court has the power -- and the constitutional obligation -- to intervene before the harm becomes irreversible.

VIII. THE PUBLIC INTEREST REQUIRES THIS COURT'S INTERVENTION

Superintending control is particularly appropriate when the issues presented are of significant public interest. The issues in this case transcend the individual dispute between Petitioner and Watson. They implicate systemic concerns affecting Michigan's entire judicial system.

A. Pro Se Litigant Access to Justice

A significant and growing percentage of family law litigants in Michigan are self-represented. If courts can impose financial barriers -- such as the \$250 bond -- that prevent pro se litigants from challenging judicial bias, the constitutional guarantee of access to courts becomes illusory

for those who cannot afford counsel. This Court should clarify that financial barriers to disqualification motions, imposed on indigent litigants, violate the due process protections guaranteed by Const 1963, art 1, Sec. 13 and the Fourteenth Amendment.

B. Enforcement of Mandatory Statutes

MCL 552.644's "shall" language creates a mandatory duty. If circuit courts can refuse to enforce parenting time despite documented violations -- and face no corrective intervention from this Court -- the statute is rendered meaningless. This Court's intervention will reaffirm the mandatory nature of MCL 552.644 and establish that refusal to enforce it is correctable through superintending control.

C. Limits on Civil Contempt Power

The use of civil contempt to incarcerate an indigent litigant for 59 days on conditions beyond his ability to satisfy raises profound questions about the limits of contempt power in Michigan. This Court's intervention will provide guidance to circuit courts on the constitutional boundaries of civil contempt -- particularly regarding:

- The requirement of ability-to-pay determinations before incarceration (Turner v Rogers, 564 US at 448);
- The right to counsel when incarceration is imposed (Mead v Batchlor, 435 Mich at 498);
- The distinction between coercive and punitive sanctions (In re Contempt of Dougherty, 429 Mich at 96-97);
- The durational limits of coercive incarceration (In re Contempt of Henry, 282 Mich App at 664).

D. Gender Neutrality in Custody Proceedings

Michigan's custody statute, MCL 722.23, is facially gender-neutral. But when courts systematically enforce against fathers while ignoring mothers' violations -- jailing one parent for 59 days while imposing zero consequences on the other -- the statute's neutrality is undermined in practice. This case presents an opportunity for this Court to reaffirm that custody determinations must be genuinely gender-neutral, and that the enforcement asymmetry documented here is inconsistent with Michigan law.

E. The Weaponization of Court Processes

The record in this case reveals a pattern of court process weaponization: numerous police reports filed against Petitioner, not as genuine safety measures but as tactical tools to build a narrative of dangerousness. Critically, law enforcement itself has recognized this pattern. In Police Report MU2422249, the responding officer assessed Watson's reports as having "little credibility" and noted that the reports "appear weaponized." (See Appendix F-1.) Despite this assessment by the very officers who investigated the reports, the trial court continued to credit Watson's allegations and restrict Petitioner's rights based on this self-generated and police-discredited paper trail. When family courts permit one party to weaponize the court system -- filing repeated reports that generate no charges and that police themselves find incredible -- the courts become instruments of abuse rather than guardians against it. This Court's intervention will signal that Michigan courts must scrutinize such patterns rather than passively accumulate them.

F. Judicial Accountability Under Superintending Authority

This case raises the most fundamental question: what happens when a circuit court judge's conduct is so persistently one-sided that ordinary remedies -- motions, appeals, disqualification -- are rendered ineffective?

The answer is found in Const 1963, art 6, Sec. 4. If this Court's superintending control power exists for any purpose, it exists for this: to ensure that the constitutional guarantees of due process, access to courts, and the fundamental right to parent are enforceable -- not merely aspirational.

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CONCLUSION AND RELIEF REQUESTED

The 14th Judicial Circuit Court's handling of Petitioner's custody case represents a systematic breakdown of judicial function of extraordinary scope and severity. The presiding judge has:

- Denied Petitioner contact with his child for 229 consecutive days (and counting) -- after revoking a functioning 50/50 custody arrangement -- without any best interest analysis;

- Entered 44% (24 of 55) orders ex parte -- void under *Bowie v Arder*, 441 Mich 23, 49 (1992);
- Jailed Petitioner for 59 days without counsel, without ability-to-pay findings, in violation of *Mead v Batchlor*, 435 Mich 480 (1990), and *Turner v Rogers*, 564 US 431 (2011);
- Refused to enforce MCL 552.644's mandatory parenting time enforcement despite documented violations;
- Never conducted the MCL 722.23 best interest analysis required by *Fletcher v Fletcher*, 447 Mich 871 (1994);
- Imposed a \$250 bond on disqualification motions in violation of *Boddie v Connecticut*, 401 US 371 (1971), and *M.L.B. v S.L.J.*, 519 US 102 (1996);
- Routed evidence outside the official record, corrupting the foundation for appellate review.

The documented record -- 1,127 judicial violations, over 150 documented misconduct claims, 308,704 evidence quotes -- establishes a pattern beyond dispute. The three-part test for superintending control is met: the lower court has failed to perform clear legal duties; no adequate legal remedy exists; and the extraordinary writ is necessary to prevent material injustice. *In re Hatcher*, 443 Mich 426, 441-442 (1993).

No individual remedy can address this totality of dysfunction. Only superintending control provides this Court with the structural authority to remove a biased judge, vacate unconstitutional orders, restore a child's relationship with his father, and ensure the lawful administration of justice going forward.

WHEREFORE, Petitioner respectfully requests that this Court:

A. Issue an Order of Superintending Control directing the 14th Judicial Circuit Court to:

1. Immediately restore meaningful parenting time between Petitioner and L.D.W.;
2. Conduct a full evidentiary hearing on custody and parenting time with findings on all 12 best interest factors under MCL 722.23(a)-(l);
3. Ensure all evidence is filed on the official record and accessible to all parties;
4. Cease all ex parte proceedings except as narrowly authorized by MCR 3.207(B);
5. Accept and docket all of Petitioner's filings;

6. Vacate the \$250-per-motion bond requirement as unconstitutional under Const 1963, art 1, Sec. 13, *Boddie v Connecticut*, and *M.L.B. v S.L.J.*;

B. Order the immediate suspension of Judge McNeill's authority over these proceedings, including:

1. Disqualification of Hon. Jenny L. McNeill pursuant to MCR 2.003(C)(1)(b);
2. Transfer of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge;
3. Prohibition against any further action by Judge McNeill in either case pending this Court's review;

C. Vacate all contempt orders entered without compliance with *Mead v Batchlor* and *Turner v Rogers*;

D. Issue an emergency order restoring parenting time within fourteen (14) days of this Court's order;

E. Order an independent custody evaluation by a qualified evaluator selected by this Court;

F. Order a full audit of the trial court's handling of both cases, including all off-docket evidence;

G. Refer the documented misconduct to the Judicial Tenure Commission for investigation pursuant to Const 1963, art 6, Sec. 30;

H. Establish a case management schedule with monthly compliance reporting for twelve (12) months;

I. Grant such other and further relief as this Court deems just and equitable.

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VERIFICATION

I, Andrew J. Pigors, declare under penalty of perjury that the factual statements contained in this Brief are true and correct to the best of my knowledge, information, and belief, and that this Brief is submitted in good faith and not for any improper purpose.

Date: _

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I hereby certify that on the day of __, 2026, I served a true copy of the foregoing PETITIONER'S BRIEF IN SUPPORT OF PETITION FOR ORDER OF SUPERINTENDING CONTROL upon the following parties by first-class mail, postage prepaid:

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